

Handling an employee's grievance

1. Overview

If your employee has a concern or problem that they have not been able to resolve informally, they may make a formal grievance complaint to you.

Businesses must have a [written grievance procedure \(/handling-employee-grievance/grievance-procedure\)](/handling-employee-grievance/grievance-procedure) in place and share it with all employees. It must say how the process works and how long it takes.

After a [hearing of the evidence \(/handling-employee-grievance/grievance-hearing\)](/handling-employee-grievance/grievance-hearing), you should let the employee know your decision in writing. The employee can [appeal the decision \(/handling-employee-grievance/employers-decisions-and-appeals\)](/handling-employee-grievance/employers-decisions-and-appeals) if they are not happy with it.

2. Grievance procedure

By law, employers must set out a grievance procedure and share it in writing with all employees, for example, in their statement of employment or staff handbook. It must include:

- who the employee should contact about a grievance
- how to contact this person

It should also:

- say that if the problem cannot be resolved informally, there will be a meeting with the employee, called a grievance hearing
- set out time limits for each stage of the process
- identify who to contact if the normal contact person is involved in the grievance
- explain how to appeal a grievance decision
- state that employees can be accompanied in any meetings by a colleague or union representative
- outline what happens if a grievance is raised during disciplinary action

You do not have to include information about the grievance procedure in employment contracts. However, if you do, you must follow the procedure, or the employee could bring a breach of contract claim against you.

Acas Code of Practice

The Acas Code of Practice is not legally binding. However, an employment tribunal can reduce or increase any money awarded in a case by up to 25% if the code has not been followed.

You can find out more in the [Acas Code of Practice on disciplinary and grievance procedures \(https://www.acas.org.uk/acas-code-of-practice-on-disciplinary-and-grievance-procedures\)](https://www.acas.org.uk/acas-code-of-practice-on-disciplinary-and-grievance-procedures).

3. The grievance hearing

Preparing for the hearing

Before holding a hearing, employers should:

- give the employee notice so that they can prepare their case
- carry out a full investigation if necessary and take statements from any witnesses who cannot attend
- make it clear that the employee can bring a colleague or union representative if they want to
- arrange for another manager to attend to make sure that the hearing is conducted properly
- arrange for someone to take notes

Delays

If the employee cannot attend the hearing (for example, because they're ill), offer them a reasonable alternative date and time.

The employee can also suggest a different time for the hearing if the person accompanying them cannot attend. They must do this within 5 working days after you proposed the original meeting time.

You can make your decision without having a hearing if:

- you have already rearranged the meeting, but the employee fails to attend
- the employee is on long-term sick leave and unable to go to meetings in the near future (they can supply written information instead if they want to)

4. Employers' decisions and appeals

After the hearing

You should give the employee a copy of the meeting records. You may be able to leave out some information in certain circumstances (for example, to protect a witness).

After you have decided the action to take, write to the parties involved, setting out:

- your decision and the reasons behind it
- the appeals process and deadline

! If there are any delays during the appeal process, it's important that you tell the employee as soon as possible.

Appeals

If the employee appeals, there should be another hearing to re-examine the decision. The process is the same as the original hearing but you should also look at:

- the reasoning behind the appeal
- any new evidence

If possible, the appeal should not be heard by the same person who held the original hearing.

After the appeal hearing, you should set out your decision in writing and state that this is the final outcome.



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